Prevention of Sexual Harassment Policy

1) Introduction:

Automation Edge Technologies Private Limited and its fully owned subsidiary Valuedx Technologies Private Limited **("Company/Companies/We")** are together rolling out this Prevention Of Sexual Harassment Policy. The Companies support each employee's right to work in a professional atmosphere that promotes equal opportunities and prohibits discriminatory practices, including sexual harassment.

This Prevention of Sexual Harassment Policy ("**POSH Policy**") is formulated in terms of the guidelines prescribed in the "Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" (the "**POSH Act**") and the principles of natural justice.

2) Applicability:

This POSH Policy applies to any and every person engaged with the Company/Companies and includes all employees, apprentices, trainees, directors, consultants, contract labour engaged by the Company/Companies, and third parties over which the Company/Companies has control.

3) Definitions:

a) "**Complainant**" shall mean a person of any age and gender whether employed or not, who has experienced Sexual Harassment (*as defined below*) or has observed some other person experiencing Sexual Harassment, or who files a complaint of alleged Sexual Harassment.

For the avoidance of any doubt, it is clarified that the Complainant can be any person who is associated with the Company in any capacity, such as a regular employee, part-time employee, contractor, consultant, trainee, intern, or even a visitor.

b) "**Employee(s)**" shall mean a person who is directly employed with the Company on a regular or temporary basis including probationers, trainees.

c) "**Respondent**" shall mean a person of any gender against whom the Complainant has made a complaint of Sexual Harassment.

d) "**Sexual Harassment**" shall mean any actions or words with a sexual connotation that interfere with an individual's ability to work or create an uncomfortable atmosphere are considered acts of Sexual Harassment. The distinguishing characteristic of Sexual Harassment is that it is sexual conduct with a component that is unwelcome, unsolicited, and unreciprocated. In short, Sexual Harassment refers to all types of unwanted sexual attention, regardless of the manner in which it is communicated, and the means of communication used. Sexual Harassment also occurs where an employer, supervisor, member of management or co-employee undertakes or attempts to influence the process of employment, promotion, training, discipline, dismissal, salary increment, or other benefit of an employee or job applicant in exchange for sexual favours. Sexual Harassment may also occur as a result of an act or behaviour by any third party or outsider.

Sexual Harassment may be classified into three basic types, as described below.

However, it is clarified that the behaviour described below is merely illustrative and is neither comprehensive nor exhaustive.

i) Verbal Harassment:

Verbal harassment includes oral and written behaviour, such as:

a) sexually suggestive comments about a person's clothing, body, and/or sexual activities;
b) sexually provocative compliments about a person's clothes or the way their clothes fit;
c) comments of a sexual nature about weight, body shape, size, or figure;
d) comments or questions about the sensuality of a person, or their spouse, partner, or significant other;
e) repeated unwanted proposals for dates and/or sexual intercourse;
f) continuous idle chatter of a sexual nature and graphic sexual descriptions; telephone calls of a sexual nature;
g) derogatory sexual comments or slurs;
h) verbal abuse or threats, sexual jokes, suggestive or insulting sounds such as whistling, wolf-calls, or kissing sounds;
i) personal comments on an individual's social media handles; or
j) inappropriate emojis, sexist jokes, or messages.

ii) Physical Harassment: Physical Harassment would include:

a) sexual gestures such as provocatively licking lips or teeth;
b) lewd gestures such as hand or sign language to indicate sexual activity;
c) sexual looks such as leering or ogling with suggestive overtones;
d) sexual innuendoes;
e) cornering, impeding or blocking movement, or any physical interference with normal work or movement;
f) touching that is inappropriate in the workplace such as patting, pinching, stroking, or brushing up against the body, mauling, attempted or actual kissing, or fondling; or
g) assault, coerced sexual intercourse, attempted rape, or rape.

iii) Non-Verbal Harassment: Non-Verbal Harassment would include:

a) gratuitous display of sexually explicit or suggestive written or audio-visual materials like pornographic posters, cartoons, drawings, books or magazines;
b) transmission or display of offensive email, screen savers or pornographic computer images;
c) offensive gestures or actions of a sexual nature including indecent exposure or "flashing".
d) not following the appropriate dress code;
e) persistent unwanted attention: following or stalking behaviour (whether physical or virtual); or
f) unwanted sexual advances that condition an employment benefit upon an exchange of sexual favours.

Sexual Harassment differs from healthy sexual attraction because it is unwelcome and/or unsolicited. Sexual conduct becomes unlawful when it is unwelcome. The challenged conduct must be unwelcome in the sense that the employee did not solicit or incite it, and in the sense that the employee regarded the conduct as undesirable or offensive. A single sexual advance may also constitute Sexual Harassment if it is linked to the granting or denial of employment or employment benefits. Further, the unwelcome, intentional touching of a person's intimate

body areas is sufficiently offensive to be considered severe, and even a single incident can be considered Sexual Harassment. A repetitive series of non-severe incidents will be considered Sexual Harassment if the Respondent was told to stop.

It is not allowed to suggest, threaten or imply that failure to accept a request for a date or sexual intimacy, will affect an employee's job prospects or conditions or circumstances of employment. For example, it is forbidden either to imply or actually withhold support for an appointment, promotion or change of assignment or to offer benefits such as promotions, favourable performance evaluations, favourable assigned duties or shifts, recommendations or reclassifications in exchange for sexual favours.

Some forms of sexual conduct, which are considered innocent by some people, may be considered offensive by others. In addition, different social or cultural backgrounds may lead persons to perceive the same conduct differently. Therefore, all employees are expected to respect the sensitivities of others especially where there may be variations in the interpretation of acceptable behaviour and accordingly cultural differences may not be used as an excuse or justification for Sexual Harassment

e) "**Witness**" shall mean a person (of any gender) who personally has seen or observed the Complainant experiencing Sexual Harassment or who has knowledge about such an incident.

f) **"Workplace**" - For the purposes of this POSH Policy, the "Workplace" includes the current office locations of Automation Edge, from where activities, operations, and business are conducted, as well as all other offices or other premises, including an Employee's home office, or 'work from home' premises, or other remote working location, from where The Company activities are conducted. Any place visited by an Employee, as a result of or during the course of employment, including transportation provided by The Company for undertaking such journey, and social events sponsored by The Company shall also constitute Workplace for the purposes of this POSH Policy. It is clarified that the Workplace includes not only physical locations but also virtual spaces in which Employees interact with each other during the course of employment, using audio-visual, online, or other means of communication.

The above-mentioned definitions are provided in this POSH Policy for the ease of understanding and are not exhaustive in nature. Upon the receipt of any complaint, the IC will first analyze whether it amounts to a complaint of 'sexual harassment' and whether it has occurred at the 'workplace' as is defined more specifically in the POSH Act. The IC's decision on these matters will be final.

Nothing contained in this POSH Policy shall prejudice any right available to, or prevent, any person from seeking any legal remedy under applicable law for the time being in force in relation to the sexual harassment faced by them.

4) General Guidelines for attending Video Conferences or Calls:

a) The Employees are not allowed to schedule any off-hour virtual meetings with a female employee without written consent from direct supervisor/manager of the Company. The employees should avoid sending any obscene emails or chat messages to each other.

b) The Employees attending video conferences or video calls with individual should ensure that they have a clean background with no posters in the background with offensive or inappropriate designs.

c) While chatting or attending calls (video/audio), the Employees should avoid making any personal or offensive statements or comments.

d) **Dress Appropriately**: The Employees should follow a formal dress code while attending video conferences or video calls with individual Employees. The employees should be well-groomed and wear appropriate corporate attire. Any revealing clothes, or clothes with offensive or inappropriate designs/prints should be avoided.

5) Establishment of Internal Committee

a) The Company has established an Internal Committee (the "**IC/Committee**") for the prevention and redressal of Sexual Harassment at the Workplace and for the purposes of successfully administering this, Policy.

b) The present constitution of the IC for the period of three (3) years is as given in **Exhibit A** but shall include the following posts:

Position	Information of the Member
Presiding Officer/Chairperson:	The presiding officer shall be a woman employed at a senior level in the organization. In case a senior level woman employee is not available at the location of the IC, the Presiding Officer shall be nominated from other female employees located at other offices or administrative units of the organization. In case the other offices or administrative units of the organization do not have a senior level woman employee, the Presiding Officer shall be nominated from any other workplace of the same employer or other department or organization;
Members:	At least two (2) Members to be nominated from amongst employees preferably committed to the cause of women or who have had experience in social work or have legal knowledge.
External Member:	A person who is familiar with issues related to sexual harassment or is from an NGO or an association that works for women's empowerment

c) The Committee shall meet periodically to evaluate and enforce compliance with this Policy.

6) Reporting Sexual Harassment:

If you experience any form of Sexual Harassment or, if you believe someone associated with the Company is experiencing any form of Sexual Harassment, you should be immediately report the same to the IC Members.

Please note that if you are filing a complaint of someone else's behalf, it is important that you obtain a written consent from that person for filing such a complaint.

A detailed procedure of filing the complaint is given below.

7) Mechanism of reporting an incident of Sexual Harassment:

a) The Complainant who believes that she/he has experienced or subjected or observed Sexual Harassment shall report the incident immediately to the IC or to the management of the Company. Such a complaint must be filed within three (3) months from the incident and in case of series of incidents, within a period of three (3) months from the date of the last incident, in the prescribed format in Exhibit B.

b) If any complaint is filed after these given timelines, the IC may refuse to entertain the same.

The IC upon a written application made to it and if it is satisfied that the circumstances were such which prevented the Complainant from filing a complaint within the prescribed period, may extend the time limit for making the complaint for further three (3) months from the expiry of the initial timelines.

c) The Complainant shall submit all necessary supporting documents and the names and addresses of the witnesses while submitting any Complaint to the IC.

d) Where such complaint cannot be made in writing, the Presiding Officer or any Member of the IC or shall render all reasonable assistance to the Complainant for making the Complaint in writing.

e) If the Complainant is unable to make a complaint because of his/her physical or mental incapacity, a complaint may be filed by anyone of the below state person(s), provided that such person is not a legal practitioner:

i) Any legal heir
ii) Any relative or friend;
iii) Any co-worker;
iv) An officer of the National Commission for Women or State's Women Commission;
v) A special educator;
vi) A qualified psychiatrist or psychologist;
vii) The guardian or authority under whose care the Complainant is receiving treatment or care;
viii) Any person who has knowledge of the incident, with the written consent of the Complainant.

In case the Complainant is dead, a complaint may be filed by his/her legal heir or any person who has knowledge of the incident, with the written consent of the Complainant's legal heir.

8) Record of Objectionable Conduct:

Complainant is urged to maintain a record of objectionable conduct. The Company encourages individuals to keep such written notes in order to accurately record any acts of Sexual Harassment and Automation Edge.

9) Inquiry into Complaint:

a) The Committee will promptly inquire into any allegation of Sexual Harassment brought to the attention of the Committee. The inquiry will be conducted within a reasonable time frame and

in any case completed within a period of three (3) months from the date on which the complaint was received (not including the period of conciliation, if any. The inquiry shall be conducted in a confidential manner so as to protect the privacy of the individuals involved, including Complainant, Respondent, and Witnesses. Confidentiality will be maintained throughout the inquiry process to the extent practical and appropriate under the circumstances.

b) Once a complaint is received, the Committee shall forward a copy of the complaint received from the Complainant to the Respondent within a period of seven (7) working days from the receipt of the complaint.

c) The Respondent shall file their reply to the complaint along with a list of supporting documents, and names and addresses of witnesses, if any, within a period not exceeding ten (10) working days from the date of receipt of the copy of the complaint.

d) The IC shall have the right to terminate the inquiry proceedings or to give an ex-parte decision by giving fifteen (15) days of written notice to the Complainant and the Respondent if the Complainant and/or Respondent fails to present himself or herself for three (3) consecutive proceedings.

e) The Complainant or Respondent shall not be allowed to bring in any legal practitioner to represent them in the proceedings before the IC.

f) A complaint will be resolved within three (3) months from receipt of the complaint by the IC.

g) The IC will record its decisions and recommendations as per the format given under Exhibit C, and accordingly, inform the same to the Complainant and the Respondent.

h) For making an inquiry under the POSH Act, the IC shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908, namely:

   i) Summoning and enforcing the attendance of any person and examining him on oath;
   ii) Requiring the discovery and production of documents; and
   iii) Any other matter which may be necessary.

j) The IC may forward the complaint to the appropriate police authority, at is discretion.

k) The management of the Company shall act upon the recommendations of the IC immediately but not later than sixty (60) days of the receipt of the recommendations of the IC.

10) Conciliation:

a) Upon a request made by the Complainant, before initiating an inquiry into any alleged complaint, the IC may take steps to resolve the matter between the Complainant and Respondent, through conciliation.

b) In case the Respondent agrees to actions such as apologies or voluntary resignation, without going through the formal disciplinary procedures, then on the basis of such actions, the Complainant and the Respondent may arrive at a resolution of the complaint informally.

c) Where the parties have arrived at a conciliation, no further inquiry shall be conducted by IC. IC shall record the details of the conciliation and forward the same to Head – Human Resources (HR) for necessary action within ten (10) working days of the conciliation.

d) It is to be noted that no complaint of Sexual Harassment shall and will be resolved by way of monetary settlement.

e) Subject to point (i) above, if the complaint has not been resolved through conciliation, IC may proceed to initiate a formal inquiry into the complaint.

11) Disciplinary Action:

Based on the conclusions of the investigation, the IC will suggest (as a part of the written report in case of formal resolution) appropriate disciplinary action to the management of the Company; which can include written apology, counseling, carrying out community service, warning, reprimand or censure, suspension, transfer from project/location (of Complainant or the Respondent), withholding of promotion, deducting the salary or any such sum as it may deem necessary, withholding of pay rise or increment, direct the Respondent to pay to the Complainant such sum considering the trauma suffered, loss in career, medical expenses incurred, income or financial status of the Complainant or any action up to and including termination of employment. The Company will implement the actions with the support of the Human Resources Head of the Company.

12) Maintenance of Records of Sexual Harassment Complaints:

The Committee/The Companyshall maintain a complete record of each Sexual Harassment complaint and response thereto, as well as the manner in which it was inquired into and resolved. Written records shall be maintained in a confidential manner.

13) Confidentiality:

a) The contents of any complaint, identity and addresses of any Complainant/Respondent/witnesses, any information relating to conciliation and inquiry proceedings, recommendations of the Committee, and action taken by The Company shall not be published, disclosed or made known to the public or press in any manner, provided that information regarding any outcome of an inquiry may be disseminated without disclosing any particulars that may lead to the identification of the Complainant/Respondent/witnesses and information shall be released only on a need-to-know basis.

b) Cases that involve allegations of Sexual Harassment are especially sensitive, and special attention will be given to the issue of privacy for all individuals.

c) Investigation at times may compromise total confidentiality.

14) Information, Education and Training:

a) The Company shall, at regular intervals, shall conduct workshops and awareness programmes to sensitise Employees to all forms of Sexual Harassment, and it shall be the duty of each employee to attend the same.

15) Other Relief to Complainant During Pendency of Inquiry:

The IC at the written request of the Complainant may recommend to the Company-

a) To either transfer the Complainant or the Respondent to any other location;

b) Grant leave to the Complainant up to a period of three (3) months or grant such other relief to the Complainant as the IC deems appropriate; or

c) Recommend to the manager of the upward hierarchy of the Company to restrain the Respondent from reporting on the work performance of the Complainant or writing her/his confidential report or assign the same to another officer.

16) Appeal:

Any female aggrieved from the recommendations of the IC may prefer an appeal to the Labour Commissioner or regular courts of justice within ninety (90) days of the recommendations given by the IC and any male aggrieved from the recommendations of the IC may prefer an appeal to the regular courts of justice within ninety (90) days of the recommendations given by the IC.

When a complaint is filed by a person other than a woman and a person aggrieved from the recommendations of the IC passed pursuant to such compliant, then such person may initiate appropriate proceedings available in the law.

17) Retaliation:

This POSH Policy strictly prohibits any kind of intimidation or harassment of individuals who have filed complaints, instituted proceedings, assisted in investigations, or formally or informally objected to discriminatory practices, irrespective of the outcome. The Company will take strict action against those Employees who indulge in such retaliatory actions. The Company will ensure that the Complainant or witnesses are not victimized or discriminated against while dealing with any complaint of Sexual Harassment.

18) Frivolous or False Charges:

a) This POSH Policy shall not be misused to bring frivolous or malicious charges against fellow employees.

b) If the Complaints Committee arrives at the conclusion that the allegation against the Respondent is malicious or the Complainant has made the Complaint knowing it to be false or the Complainant has produced any forged or misleading document, it may recommend the Company to take any action including a written apology, warning, reprimand or censure, withholding of promotion, withholding of pay rise or increments, terminating the Complainant from service or undergoing a counseling session or carrying out community service.

19) Amendments

The Company shall amend from time to time, as it thinks fit, subject to compliance with applicable laws in force at the relevant time.

Exhibit A

Please find the details of the Internal Complaints Committee

Position	Name of the Member	Contact Detail
Presiding Officer/Chairperson:	Radhika Rao	Email: radhika.rao@automationedge.com
Members:	Amruta Hiwarkar	Email: amruta.hiwarkar@automationedge.com
	Hemanshu Rukadikar	Email: hemanshu.rukadikar@automationedge.com
	Anand Tambey	Email: anand.tambey@automationedge.com
	Vaishnavi Pawar	Email: vaishnavi.pawar@automationedge.com
External Member:	Girija Gadgil	Email: girija.gadgil@legalogic.com

Flow chart of the Process

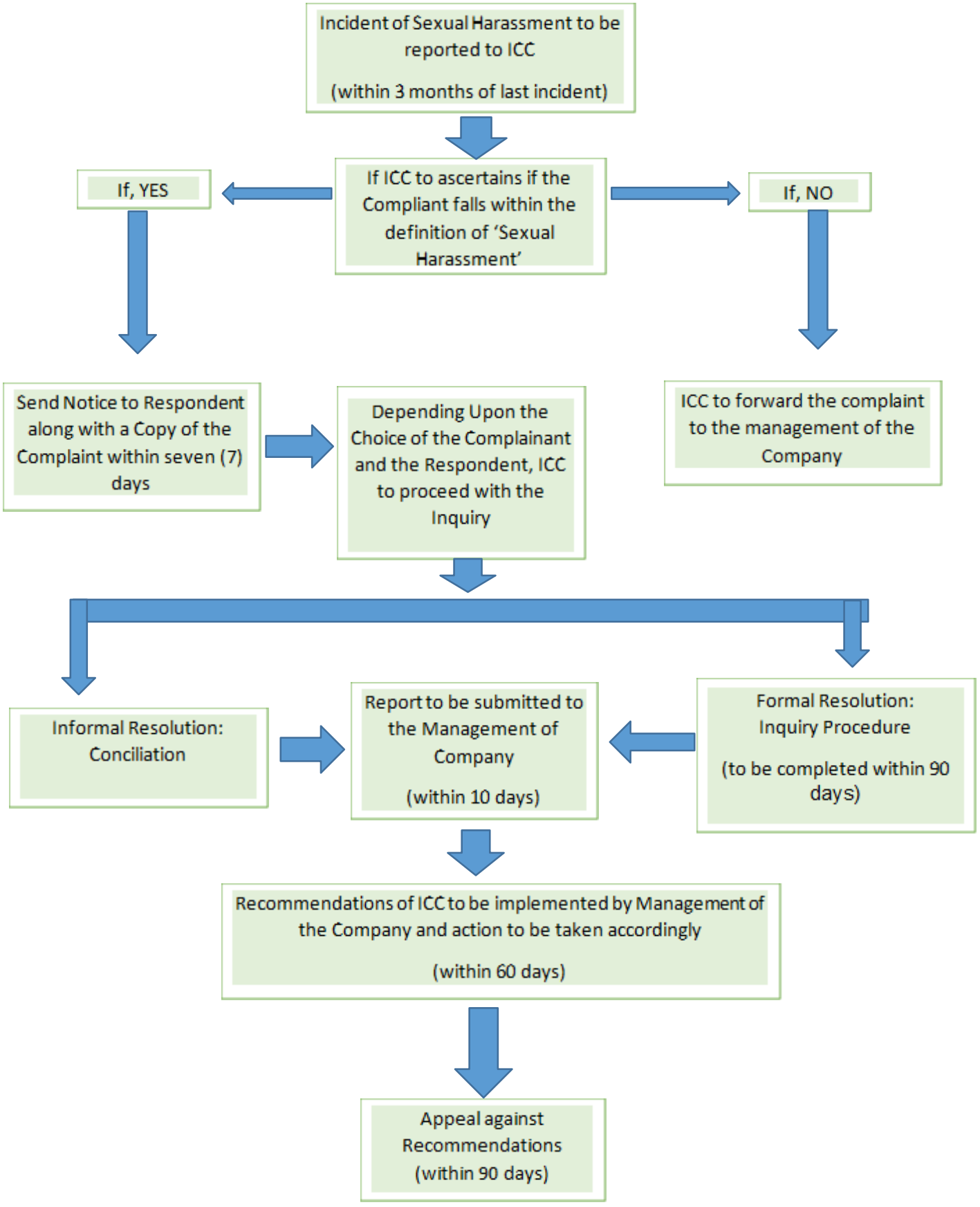


Exhibit B: Form for Sexual Harassment Complaint

Details of the Complainant: Name: Employee ID:
Complaint Details: 1. Date and Venue of occurrence of the incidence: 2. Name of the Accused: 3. Witness, if any:
Description of the Complaint:
Declaration:
I acknowledge that the above information provided by me is true. I am aware that any malicious, frivolous charges made by me, will result in a strict disciplinary action leading up to but not limited to termination.

Name of Employee	
Signature	
Date	

Exhibit C: Format of Report by Internal Complaints Committee

A. **Details of the Complainant** i.Name: [Insert Name] ii.Address: [Insert Address]
B. **Details of the Respondent:** i.Name: [Insert Name] ii.Address: [Insert Address]
C. **Detailed Description of the Complaint:**
D. **Date and Venue of occurrence of the Incident**:
E. **Date of submitting the Complaint**:
F. **Witness (if any):**
G. **Investigation Report:** (Investigation Conducted By: [Insert Names]) **Statement by the Respondent:**
H. **Analysis:**
I. **Inference:**
J. **Recommendations of the IC to the management of the Company:**
K. **Name and Signatures of the Investigating IC Members:**